SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

2025PRTR051356: IN RE THE BAUGHMAN FAMILY TRUST DATED MARCH 18 1987
07/15/2026 in Department J6
Motion for Attorney Fees and Costs

Probate Code section 17211(b) provides:

> "If a beneficiary contests the trustee's account and the court determines that the contest was without reasonable cause and in bad faith, the court may award the trustee his or her costs and expenses, including attorney's fees, incurred to defend the account."

Petitioner alleges that although the statute refers to contests of an "account," California courts interpret Probate Code section 17211 broadly to include petitions seeking to compel an accounting where the pleading fails to allege facts establishing any duty to account or any misconduct warranting court intervention. Trustee argues that Courts routinely award fees under Probate Code section 17211(b) where the petition fails to allege facts constituting a viable claim, and the pleading reflects an improper purpose, harassment, leverage-seeking, or fishing expedition.

Probate Code section 17211, subdivision (b) is a remedial statute: it is intended to protect beneficiaries who contest trustees' accounts from liability for attorney fees incurred as a result of trustees' unreasonable and bad faith oppositions. "A remedial statute is one which provides a means for the enforcement of a right or the redress of a wrong." (*Rich v. Maples* (1867) 33 Cal. 102, 106; *Miller v. Hart* (1938) 11 Cal.2d 739, 741, 81 P.2d 923 [remedial statute affords new and additional means of enforcing right].) (*Leader v. Cords* (2010) 182 Cal.App.4th 1588,1597)

The statute is inapplicable here. The statute is intended to "protect beneficiaries who contest trustees' accounts from liability for attorney fees incurred as a result of trustees' unreasonable and bad faith oppositions."

The opposite has occurred here. The trustee is seeking attorney's fees based on a beneficiary's action to compel an accounting. The protections of §17211(b) are not available to the trustee.

Probate Code §17211(a) states:

> (a) If a beneficiary contests the trustee's account and the court determines that the contest was without reasonable cause and in bad faith, the court may award against the contestant the compensation and costs of the trustee and other expenses and costs of litigation, including attorney's fees, incurred to defend the account. The amount awarded shall be a charge against any interest of the beneficiary in the trust. The contestant shall be personally liable for any amount that remains unsatisfied.

This section is also not available as the court did not rule that petitioner acted in bad faith in bringing his petition.

Trustee also raises Probate Code § 17206, which provides "The court may make any orders and take any other action necessary or proper to dispose of the matters presented by the petition." California probate courts therefore possess broad equitable jurisdiction to protect trust estates from litigation conduct that unnecessarily depletes trust assets.

Likewise, California Probate Code § 15684 authorizes reimbursement to a trustee for: "Expenditures that were properly incurred in the administration of the trust." Attorney's fees incurred defending trust administration constitute proper trust administration expenses where incurred in good faith. In *Estate of Gump* (1991) 1 Cal.App.4th 582, 587-604.

Here the attorney fees were incurred in good faith and were a proper trust administration expense.

Trustee cites *Pizarro v. Reynoso* (2017) 10 Ca.App.5th 172, for the argument that the Court of Appeal recognized the probate court's "broad equitable powers" to allocate attorney's fees against beneficiaries who pursue unfounded positions and litigate in bad faith. Trustee states that the Court stated "the court's broad equitable powers over trust assets are sufficient to justify an award of attorney fees and costs against any trust beneficiary who takes an unfounded position and litigates in bad faith." (*Id*. at p. 190.)

Pizarro states, "The court's equitable power includes the power to charge attorney fees and costs ***against a beneficiary's share of the trust*** if that beneficiary, in bad faith, brings an unfounded proceeding against the trust. (*Rudnick v. Rudnick* (2009) 179 Cal.App.4th 1328, 1335, 102 Cal.Rptr.3d 493.) (*Pizarro, supra,* at 183).

Here the beneficiary in question does not have a share of the trust at present and may never have a share as he is a contingent beneficiary. Further, bad faith has not been found in this matter.

Therefore, there are no grounds to charge petitioner personally, the trustee's attorney fees and costs are allowed from the trust estate.

The court intends to award attorney's fees and costs and deny the request that the fees are payable by petitioner personally.